

US FTC Advertising & Health Claims Practical Examples (3)

Legal-status note: The examples in this document are derived from the FTC's *Health Products Compliance Guidance*. They are illustrative examples of how the FTC applies advertising principles and are not independent statutes or regulations. The FTC expressly states that the guidance does not have the force or effect of law.

Example 16 Paid Blogger Claims

FTC Source: Health Products Compliance Guidance Example 40

Scenario:

A marketer pays a blogger to use its supplement and write a review.

The company does not expressly claim that the supplement cures acid reflux, but the blogger writes that it **cures acid reflux** and recommends it to people with the condition.

The company has no evidence supporting the claim.

FTC principle:

The advertiser can be responsible for the misleading claim communicated through the blogger.

Ayurvedic Application:

Paying an influencer to promote an Ayurvedic supplement does not shield the company from responsibility for unsupported health claims made in the influencer's content.

Compliance Trigger:

Influencer / blogger / paid promotion / acid reflux / unsupported health claim.

Example 17 Paid Endorsement Must Be Disclosed

FTC Source: Health Products Compliance Guidance Example 43

Scenario:

A popular book recommends a particular supplement brand as the highest-quality and most effective brand.

The author has an exclusive promotional arrangement with the manufacturer and has been paid to mention the product.

The company's advertising emphasizes that its product is the only brand recommended in the book.

FTC conclusion:

The advertising can be deceptive if consumers are led to believe the recommendation is unbiased when there is actually a paid promotional relationship.

Ayurvedic Application:

If an Ayurvedic company pays an author, practitioner, influencer, or other person to recommend its product, the commercial relationship must not be hidden where disclosure is required.

Compliance Trigger:

Paid endorsement / influencer disclosure / sponsored content / material connection.

Example 18 Foreign Regulatory Approval Does Not Prove Efficacy

FTC Source: Health Products Compliance Guidance Example 25

Scenario:

An herbal supplement is advertised as promoting healthy vision and is described as **approved in Germany** for that purpose.

The product has been used extensively in Europe and received approval under a German monograph process.

The company has two German trial abstracts.

FTC conclusion:

The foreign approval itself does **not constitute substantiation that the supplement is effective**.

Ayurvedic Application:

An Ayurvedic company should not assume that:

- approval in India;
- recognition by an Indian authority;
- inclusion in an Ayurvedic pharmacopoeia;
- traditional recognition; or
- approval/recognition in another country

automatically proves an advertising claim under U.S. FTC standards.

Compliance Trigger:

Foreign approval / India approval / Ayurvedic recognition / efficacy substantiation.

Example 19 Traditional Use + Positive Testimonial Can Contradict the Disclaimer

FTC Source: Health Products Compliance Guidance Example 44

Scenario:

Advertisement:

Ancient remedy used for centuries to aid digestion. There is no scientific evidence that it works.

The disclosure is equally prominent.

But the advertisement also includes:

This tea gave me instant relief from my upset stomach.

FTC concern:

The testimonial can undermine the disclaimer and cause the **overall/net impression** to be that the product is effective for digestive problems.

Ayurvedic Application:

This is particularly important for your Ayurveda database:

Traditional-use disclaimer + strong positive testimonial ≠ automatically compliant.

The advertisement must be evaluated as a whole.

Compliance Trigger:

Traditional Ayurveda claim / disclaimer / testimonial / net impression / digestive claim.